

A blurred background image of a business meeting. Several people in professional attire are gathered around a table. One person is holding a tablet displaying a document with charts and text. Another person is holding a smartphone. There are coffee cups on the table. The overall scene suggests a collaborative work environment.

Intellectual Property & other Legal Issues for the Entrepreneur

Ajarn Thanawat Choeypunt

What will we learn?

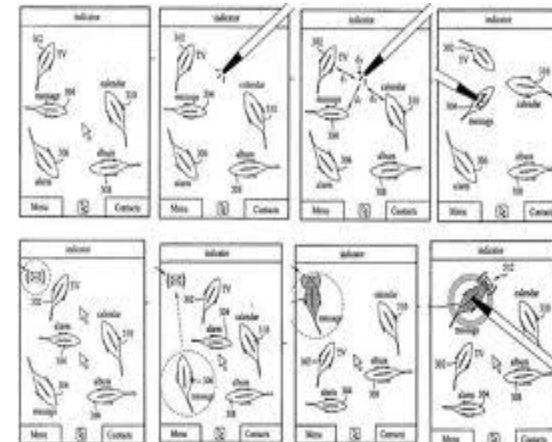
- **Intellectual Property (IP)**
- **Patents**
- **Trademarks**
- **Copyrights**
- **Trade Secrets**
- **Licensing**
- **Insurance**
- **Contracts**
- **IP Registers**
- **Property Control**



P&G



Intellectual Property





Common Questions

- Question: Why should I even care about intellectual property (IP)?
- Answer: **MONEY**– IP is very likely the most valuable part of your client’s business.

What is Intellectual Property?

Intellectual Property refers to any patents, trademarks, copyrights, or trade secrets held by the entrepreneur.

- These represents important assets to the entrepreneur.
- Intellectual property should be understood even before engaging the services of an attorney.
- It must be protected from **Un-authorized use.**

There are four ways to protect IP:

1. Patents on Inventions
2. Trademarks on Branding Devices
3. Copyrights on Music, Videos, Patterns, Forms of Expression
4. Trade Secrets for Methods/Formulas with Economic Value

Value of Intellectual Property

- Startup Financing- Investors want to make sure that the business is protecting the IP.
 - May want to know what IP the business has and how it is being protected.
 - May require a collateral interest in the IP (security interest).
- Preserve and Grow Market Share- Legal Barrier to Entry
- Selling the Business- IP Due Diligence (e.g., IP list)
 - Purchaser may require a warranty for any defects in the IP.
 - IP problem have and will kill deals!



Need for a Lawyer ?

- Since all business is regulated by law, the entrepreneur needs to be aware of any regulations that may affect his/her new venture.
- At different stages of start-ups, the entrepreneur will need legal advice.
- Entrepreneur should carefully evaluate the lawyer needs before hiring one.

How to Select a Lawyer?

- **Lawyers**, like many other professionals, are specialists not just in the law but in specific areas of the law. The entrepreneur does not usually have the expertise or know-how to handle possible risks associated with the many difficult laws & regulations. A competent attorney is in a better position to understand all possible circumstances & outcomes related to any legal action.
- **Lawyer** may work on a retainer basis (stated amount per month or year) & **provides office & consulting time.** This gives the opportunity to the entrepreneur to call an attorney as the need arises without incurring highly hourly visit fees.

How to Select a Lawyer?

- Or the lawyer may be hired for one time fee e.g. a patent attorney may be hired as a specialist to help the entrepreneur obtain a patent. Once the patent is obtained, this lawyer would not be needed, except any issues regarding patent.
- A good working relationship with a lawyer: Eases some of the risk in starting a new business.
- Gives the entrepreneur necessary confidence.
- Entrepreneur can offer the lawyer stock in exchange for services.

Introduction to Intellectual Property Law

- Intellectual property (IP) refers to **creations of the mind**, such as inventions; literary and artistic works; designs; and symbols, names and images used in commerce. [WIPO]
- **Types of IP:**
 - **Trademarks:** recognizable sign, design, or expression which identifies products or services of a particular source from those of others.
 - **Patents** (Inventions and Product Designs): right granted to an inventor that permits the inventor to exclude others from making, selling or using the invention for a period of time.
 - **Copyrights:** a person's exclusive right to reproduce, publish, or sell his or her original work of authorship.
 - Others, e.g. trade secrets, geographical indications, etc.

Introduction to Intellectual Property Law



General Principles of Intellectual Property

Protection : CREATION AND PROTECTION

Trademarks:

- **Registration of trademark is not required** for protection but recommended.
- An owner of unregistered trademark has limited scope of rights and protection.

Patents and Product Designs:

- Registration of invention or product design is required for protection.

Copyrights:

- No registration is required for protection. A copyright work is under copyright protection the moment it is created.
- Deposit of copyright is beneficial and recommended.

TERM OF PROTECTION

Trademarks:

- 10 years from filing date of application (renewable)

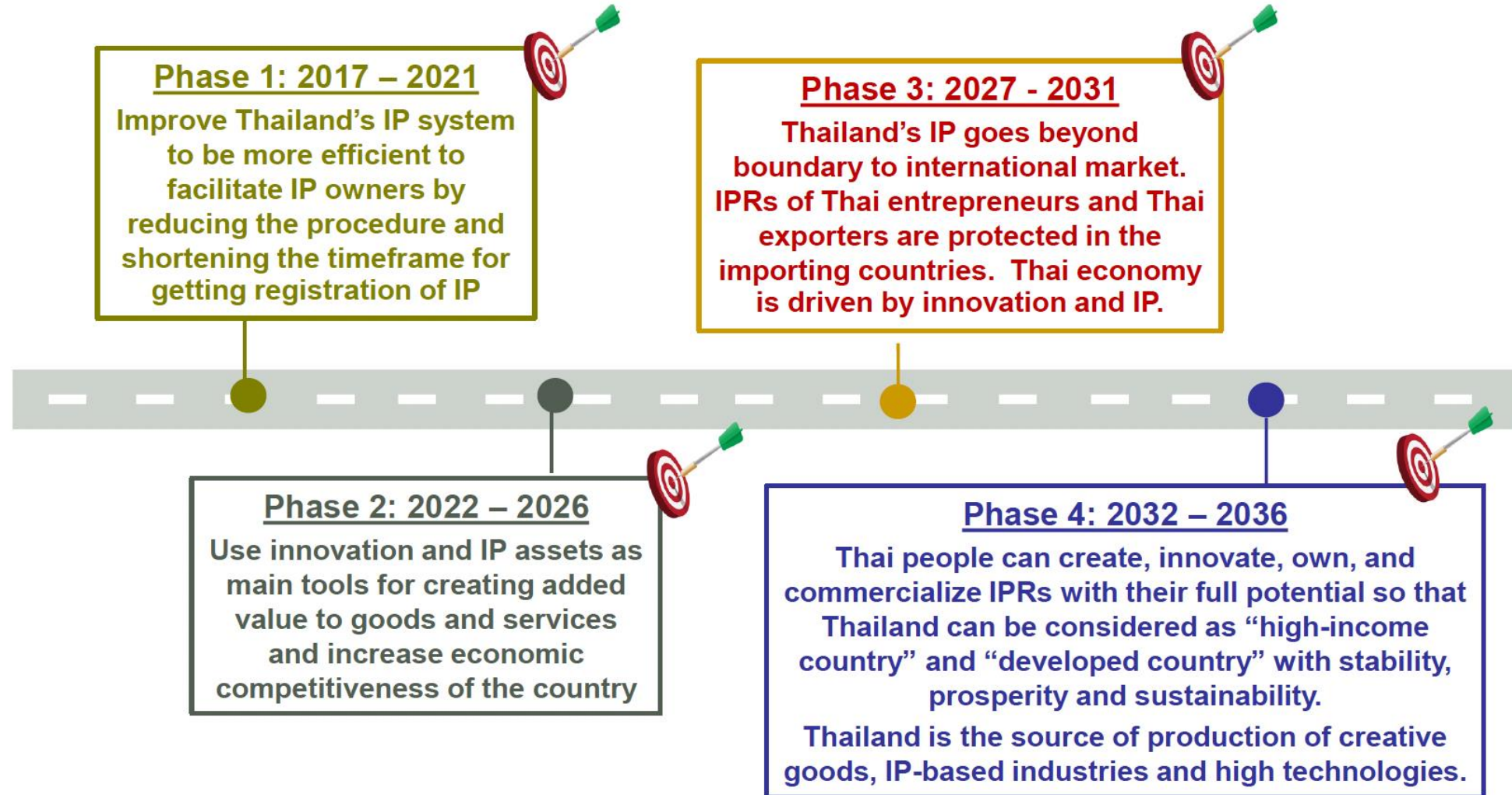
Patents:

- Invention patent: 20 years (non-renewable)
- Petty patent: 6 years plus two allowable extensions of 2 years each (10 years in total)
- Design patent: 10 years (non-renewable)

Copyrights:

- Life of author plus 50 years
- 50 years from publication date for companies

Thailand's 20 Years IP Roadmap to Economy 4.0 (2017-2036)



Common Questions 2

- Question: Why should my client care about getting sued over IP– the general business insurance policy should cover it?
- Answer: Typically, most business insurance policies do not cover patent infringement lawsuits and usually have carve outs for trademark and copyright infringement lawsuits as well.
- You generally need to purchase a separate policy to cover IP infringement lawsuits, especially for patents.

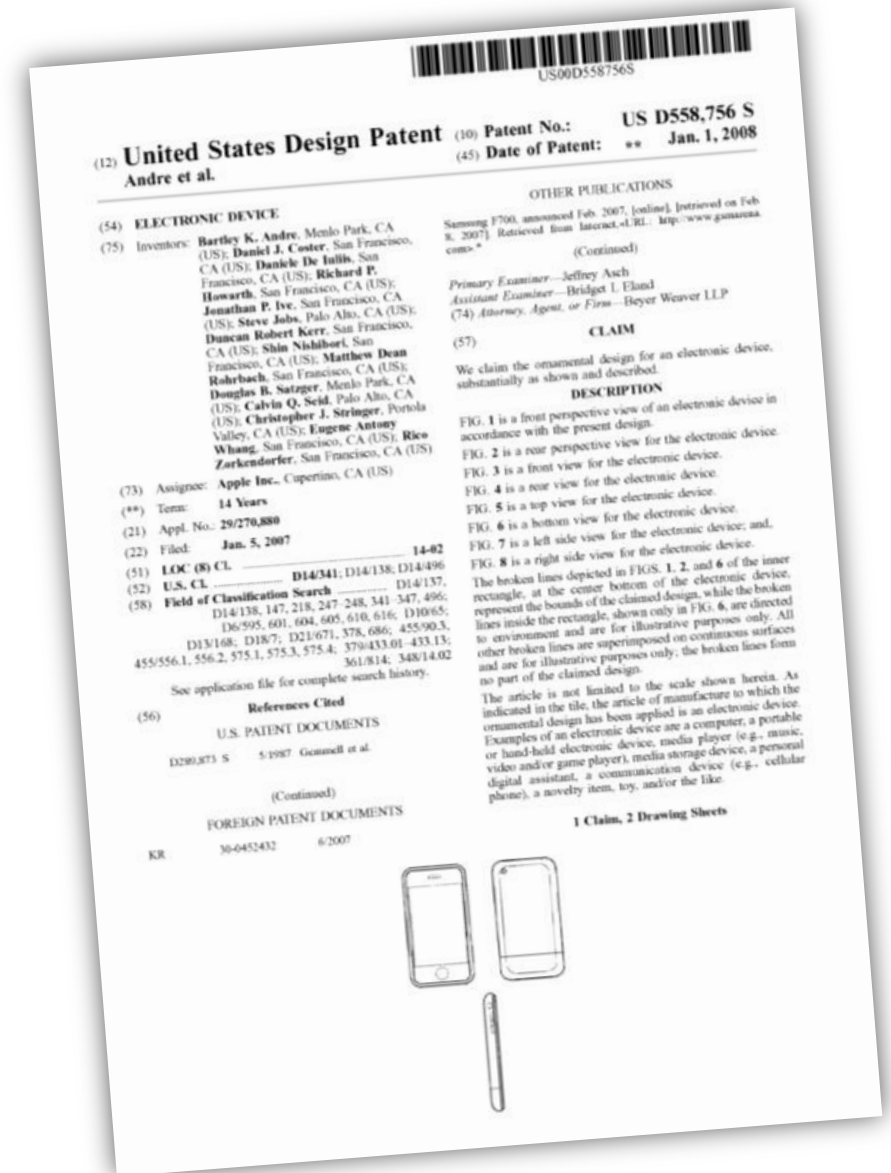
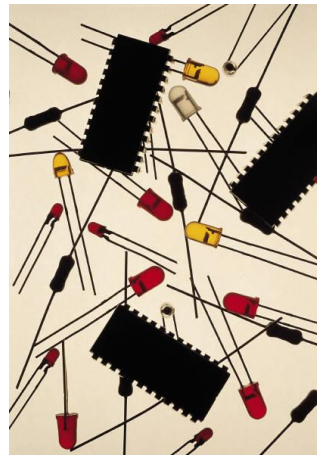
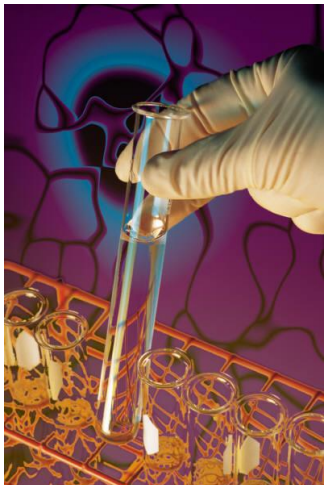




Patent

Patents

TECHNOLOGY/ + INDUSTRIAL INVENTION DESIGNS



Patent Act B.E. 2522 (A.D. 1979)

- Covers invention patents, petty patents/utility models, and design patents.
- Amended in 1992 and 1999 particularly with regard to the scope of patentable subject-matter, national treatment, priority filings, patent rights, petty patents, compulsory licensing, and the Drug Patents Board.

Patents

Grants holder protection from others making, using, or selling a similar idea.

- **A patent is a contract b/w the government & an inventor.** In exchange for disclosure of the invention, the government grants the inventor exclusively regarding the invention for a specified amount of time.
- At the end of this time, the government publishes the invention & it becomes part of the public domain, which will help in generating new ideas & even the development of an better product that could replace the original.

Common Questions 3

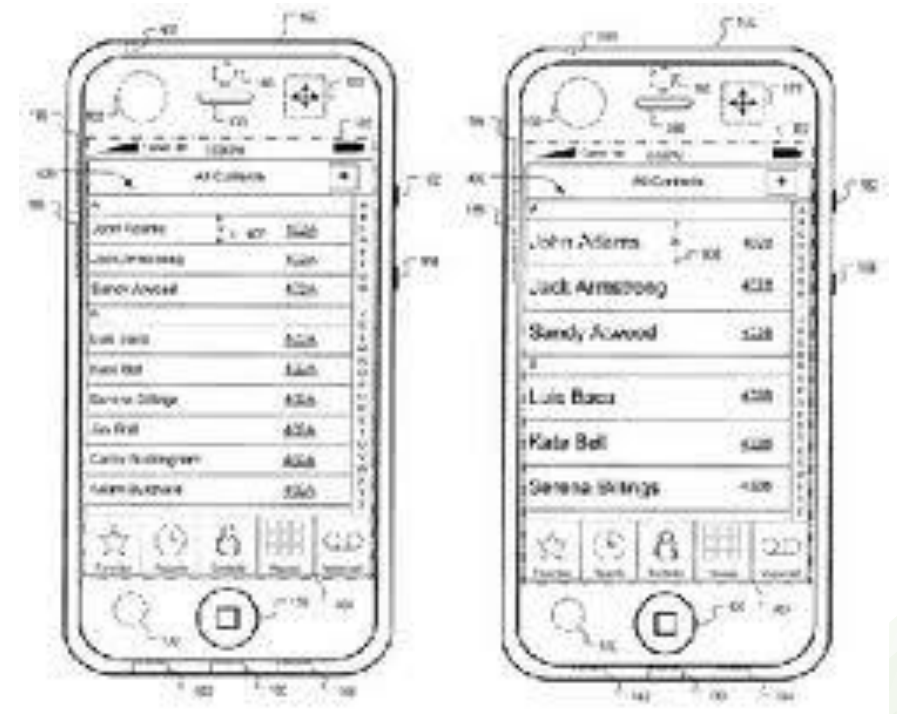
- Question: I heard that you can't get patent protection for_____ (fill in the blank)?
- Answer: Generally, speaking you can get patent protection for any invention that is new and nonobvious.
- There are a few exceptions where you cannot get patent protection, such as for laws of nature, abstract ideas, criminal tools, and perpetual motion machines.
- Although you can receive patent protection for them, there are certain types inventions that might be better protected with other forms of intellectual property, such as trade secrets for industrial chemical/manufacturing processes.



Types of patents

1. Utility patents:

- It grants the owner protection from anyone else making using and selling the identified invention and generally reflects protection of new, useful, and unobvious process such as film developing, machines such as photocopier, composition of matter such as chemical compound or mixture of ingredients and articles of manufacture such as toothpaste pump.
- Examples: **Fiber Optics, Computer Hardware** etc



Types of patents

2. Design patents:

- Covers new, original, ornamental, and unobvious designs for articles of manufacture, a design patent reflects the appearance of an object.
- The look of an **Athletic Shoe**, a **Bicycle Helmet**, the **Star Wars Characters** are all protected by Design Patents.



Types of patents

3. Plant patents:

- These are issued under the same provisions as utility patents and are for new varieties of plants. These patents represent a limited area of interest, and thus very few of these types of patents are issued.
- Example: **Hybrid Tea Roses, Silver Queen Corn, Better Boy Tomatoes** are all types of plant patents.



TERM OF PATENT'S PROTECTION

- **Invention patent:** 20 years (non-renewable)
- **Petty patent:** 6 years plus two allowable extensions of 2 years each (10 years in total)
- **Design patent:** 10 years (non-renewable)

The Patent Application

- The patent application must contain a complete history & description of the invention as well as claims for its usefulness.
- The actual form can be downloaded from the patent & trademark office website. There are **three main section in the application.**

i. **Introduction:**

This section should contain the background & advantages of the invention and the nature of problems that it overcomes. It should clearly states how the invention differs from existing offerings.

The Patent Application

ii. Description of invention:

- The application should contain a brief description of the drawings that accompany it. A detailed description of the invention, which may include materials, engineering specification & so on.

iii. Claims:

- Serve to specify what the entrepreneur is trying to patent. Essential parts of the invention should be described in broad terms. Claims must not be too general either that they hide the invention uniqueness & advantage.

Business Method Patents

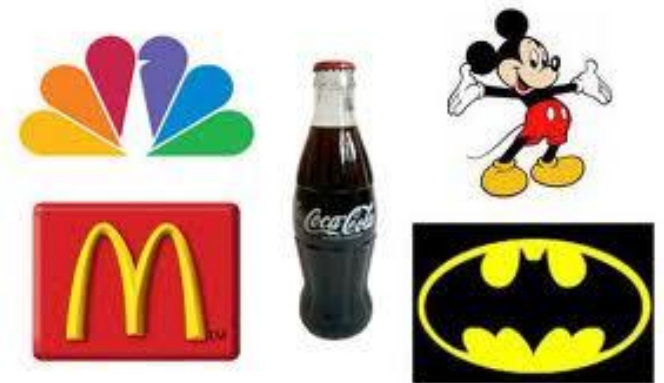
- The growth of Internet use and software development has given rise to business method patents. Firms use these patents to assault competitors and subsequently provide income from royalties or licensing fees. Concerns have evolved regarding these patents.
- E.g. **Amazon.com** owns a business method patent for the single clicking feature used by a buyer on its website to order products.
- **Pricelines.com** claims that it holds a patent related to its service where a buyer can submit a price bid for a particular service.

Start-up without a patent

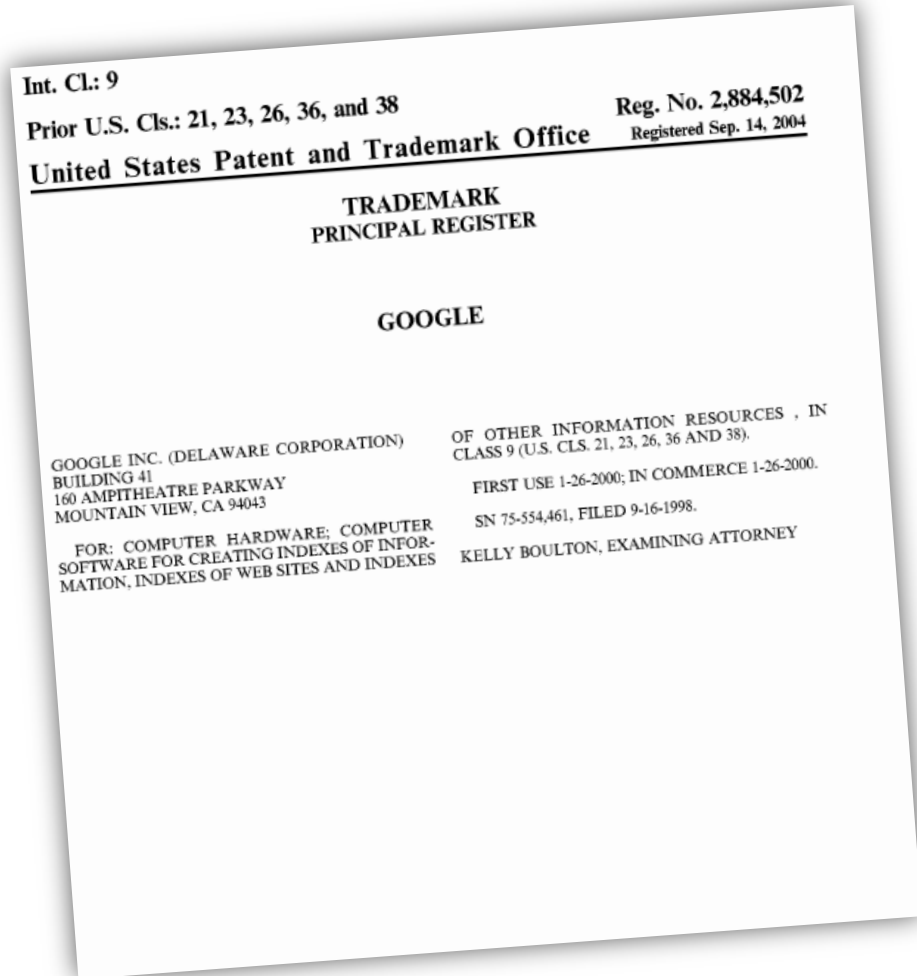
- Not all start-ups will have a product or concept that is patentable.
- In this case the entrepreneurs should understand the competitive environment to ascertain any advantages that may exist or to identify a unique positioning strategy.
- Maintaining the differential advantage may be a challenge but represents an important means of achieving long-term success.



Trademarks



Trademarks



Coca-Cola



NAME/SOURCE
-GOOD WILL

TM



COMMON LAW



FEDERALLY REGISTERED

Trademark Act B.E. 2534 (A.D. 1991)

- Covers trademarks, service marks, certification marks and collective marks.
- Amended in 2000 particularly with regard to the definition of a mark (sound mark is now registrable), multiple-class application, publication fees, Trademark Board, cancellation of trademark registration and enforcement.
- Amended in 2016 for accession to Madrid Protocol.

Trademarks

- A distinguishing word, name or symbol used to identify a product. Trademarks, unlike Patents, can be renewed FORVER as long as they are being used in business.
- The trademark is given an initial 10 year registration with ten year renewable terms. In the 5th to 6th year the registrant is required to file an affidavit with the PTO indicating that the mark is currently in commercial use otherwise the registration will be cancelled.

Trademarks

- Protects Words, Names, Symbols, Sounds, or Colors that distinguish goods and services.
- Trademarks, unlike Patents, can be renewed FORVER as long as they are being used in business.
- The roar of the *MGM* lion, the pink of the *Owens-Corning* insulation, and the shape of a *Coca-Cola* bottle, The Original Lawn by Gul Ahmed are familiar trademarks.

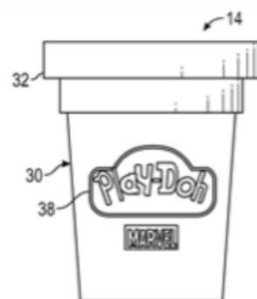
Trademark

Word, Goods
Symbol, + or =
Etc. Service
(“for”)
Trademark

Metro-Goldwyn-Mayer



Shape, Scent, & Color Marks



Coca-Cola
In the Distinctive Bottle
est. 1886



1899



1900



1916



1957

Trademarks

There are four categories of trademarks:

- i. **Coined marks:** denote no relation between the mark & the goods or services & afford the possibility of expansion to a wide range of products. **E.g. Mercedes, Kodak**
- ii. **Arbitrary Mark:** Is one that has another meaning in our language & is applied to a product or service. **E.g. Apple**
- iii. **Suggestive Mark:** Is used to suggests certain Features, Qualities, Ingredients, or Characteristics of a Product or Service. **E.g. Clean & Clear, Fair & Lovely, Skin.**
- iv. **Descriptive Mark:** with a dictionary meaning which is used in connection with products or services directly related to that meaning. **E.g. Ruberoid as applied to roofing materials that contain rubber.**

Trademarks- What are Some Types?

- Trademark – identify the source & qualities of goods (cars, clothing...) (e.g., Coke[®] for soft drinks)
- Service Mark – identify the source & qualities of services (accounting, restaurants,...) (e.g., McDonalds[®] for fast food services)
- Trade Dress - packaging or form of the product that operates to distinguish source/quality of the goods (e.g., Coke bottle)

Ownership: Trademarks

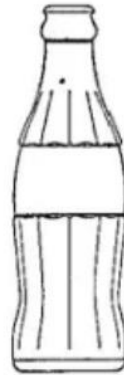
- Trademark = Word, symbol, sound, or other device a manufacturer or merchant adopts to identify and distinguish their goods or services from others.
- A Trademark is Different from a Trade Name
- Trade Name = The official (legal) name of the business/organization, usually registered with the government.
 - Although different, part or all of the Trade Name might be used as a trademark.

Registering the Trademark

- ❖ Filing of the trademark registration **must meet four requirements:**
 - ❖ Completion of the written form.
 - ❖ A drawing of the mark.
 - ❖ Five specimens showing actual use of the mark.
 - ❖ The fee.
- ❖ Initial determination of suitability takes 3 months. Any objections by the entrepreneur must be raised within six months, or application is considered abandoned.
- ❖ Once accepted, the trade mark is published in the “trade official gazette” to allow any party 30 days to oppose or request an extension to oppose. If no opposition is filed, the registration is issued & the entire procedure usually takes 13 months.

TRADEMARK

Principal Register



The Coca-Cola Company (Delaware corporation)
310 North Ave. NW.
Atlanta, Ga. 30313

For: SOFT DRINKS, in CLASS 32 (U.S. CL. 45).
First use July 8, 1916; in commerce at least as early as
Sept. 1, 1916.

The mark consists of the three dimensional configura-
tion of the distinctive bottle as shown.

Owner of Reg. No. 696,147.

Ser. No. 88,384, filed May 25, 1976.

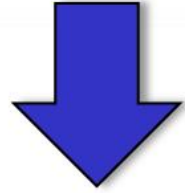
JOHN C. DEMOS, Examiner

Trademark v. Trade Name

Ford Motor Company

Ford Motor Company

← Trade Name



LINCOLN

← Trademarks

TRADEMARK INCORPORATES
PART OF TRADE NAME

Trademarks- How Long Do Trademarks Last?

- Common law rights generally last as long as trademark continues to be used in commerce
 - Registrations typically need to be renewed every 10 years
- Rights can be lost if:
 - Expressly abandon the mark
 - Mark becomes generic (“aspirin”, “Xerox”, “Kleenex”)
 - Stop using and do not intend to reuse, presumed after 2 years
 - Allowing loss of distinctiveness by not enforcing infringement

What is Typically the Most Valuable IP Asset?

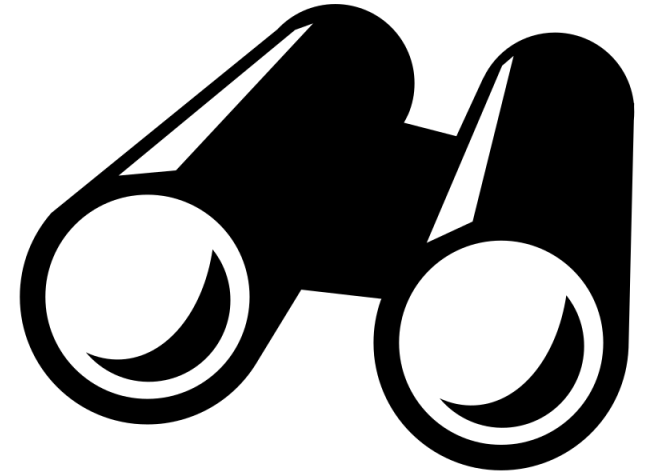
- For most companies, trademarks (i.e., their good name) are the most important.



However, value can quickly
change due to other
factors!

Trademarks- Selecting

- Before using a valuable trademark (or trade name) strongly consider having a trademark clearance search performed.
 - Considerable liability risk
- Initial Clearance Considerations
 - Check Domain Name Availability
 - Perform Web Search
 - Check Federal Trademark Registrations- tmsearch.uspto.gov
 - Check Secretary of State





Copyrights



Certificate of Registration

 This Certificate issued under the seal of the Copyright Office in accordance with title 17, *United States Code*, attests that registration has been made for the work identified below. The information on this certificate has been made a part of the Copyright Office records.

Maura A. Pallante
Register of Copyrights, United States of America

Registration Number
TXu 1-946-788
Effective Date of Registration:
February 19, 2015

Title _____
Title of Work: MY MEMOIR

Completion/Publication _____
Year of Completion: 2014

Author _____
• Author: Robert T. Jefferson
Author Created: text
Citizen of: United States
Year Born: 1928

Copyright Claimant _____
Copyright Claimant: Robert T. Jefferson
1412 Hampton Circle, Goshen, IN, 46526, United States

Rights and Permissions _____
Organization Name: Woodard Emhardt Moriarty McNett & Henry LLP
Name: Timothy N. Thomas
Email: tnt@uspatent.com
Telephone: (317)634-3456
Address: 111 Monument Circle
Suite 3700
Indianapolis, IN 46204 United States

Certification _____
Name: Timothy N. Thomas
Date: February 19, 2015
Applicant's Tracking Number: 024166-000003

CREATIVE
WORKS

Advertising,
Marketing,
Software, etc.

Copyrights



Overview of Thailand Intellectual Property Law

Copyright Act B.E. 2537 (A.D. 1994)

- Cover copyrights and performers' rights.
- Amended in 2015 to penalize unauthorized camcording in cinemas and to update the law for the digital age, especially measures against online infringement.
- Amended in 2018 (will come into force in February 2019) with regard to exemptions to copyright infringement for disabled persons.

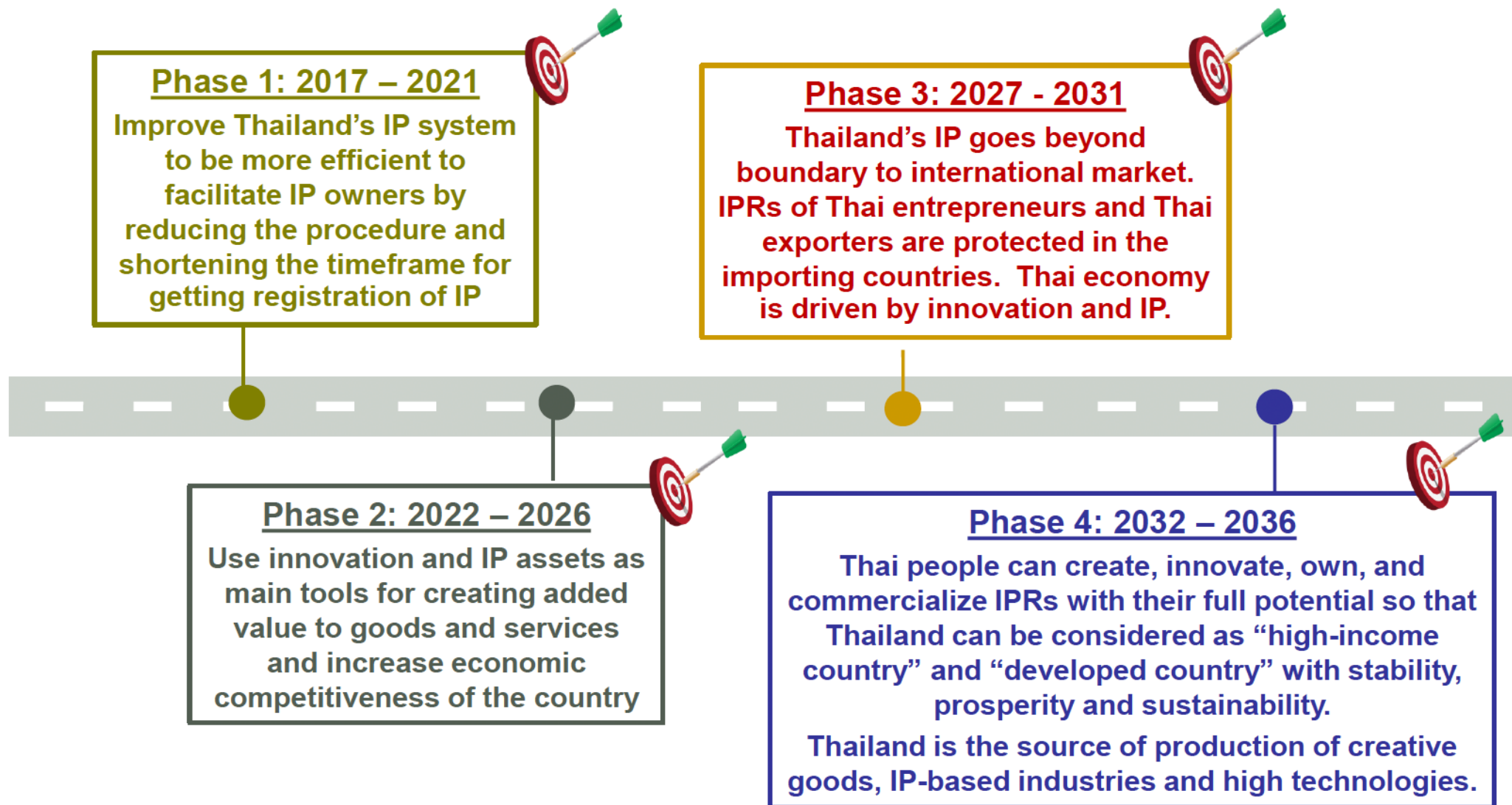
Act for Establishment of, and Procedure for, Intellectual Property and International Trade Court (IPIT Court) B.E. 2539 (A.D. 1996)

- IPIT Court has nationwide jurisdiction to adjudicate civil and criminal cases on intellectual property and civil cases on international trades.

Act for Establishment of Specialized Appeals Court B.E. 2558 (A.D. 2015)

- Establishing Specialized Appeals Court.
- Appeals made against decisions of the IPIT Court rendered on or after 1 October 2016 are filed with the new Specialized Appeals Court, not the Supreme Court.

Thailand's 20 Years IP Roadmap to Economy 4.0 (2017-2036)



Copyright overview

- **Protects Works of Authorship, such as WRITINGS, MUSIC, and WORKS OF ART that have been Tangibly Expressed.**
- **Stop others from Printing, Copying, or Publishing**
- **Does not protect Idea itself, others can use Idea/Concept in a Different manner**
- **Term of Copyrights is the life of Author plus 50 Years & 75 Years for an Institute.**
- **For Example: Gone With The Wind, Harry Potter (the book and the film), Beatles Recordings, Computer Software, and Video Games.**
- **Books, Scripts, Articles, Poems, Songs, Sculptures, Models, Maps, Blueprints, Collages, Printed Material, Data & Music all can be Copyrighted.**

Copyright

- **Copyright** is a type of intellectual property that protects original works of authorship as soon as an author fixes the work in a tangible form of expression.
- The combination of originality and fixation gives the creator copyright over the work.
- Copyrights for “**works made for hire**” are **owned by the employer** and copyrights for work commissioned by a publisher are owned by the publisher.



copyright

all rights reserved

Copyright

- Copyright **does not protect ideas or facts** per se, but an original expression of an idea in a tangible form is protected by copyright. Thus, several people can own the copyright to the same idea or fact, each based on the originality the creator brings to the idea or fact.
- **For example**, multiple photographers can take pictures of the same sunrise from the same location, and each photographer will own the copyright to their own photographs, since they are the photographer's **original expression of the idea**, expressed in tangible form as a photograph.

Copyright

- Right given to prevent others from printing, copying, or publishing any original works of authorship.
- **Such as Books, Scripts, Articles, Poems, Songs, Sculptures, Data & Music.**
- The protection in a copyright doesn't protect the idea itself, it allows someone else to use the idea or concept in a different manner.
- The copyright law has become especially relevant because of the tremendous growth of the use of internet, especially to download music, literary work, picture arts etc. although software copyright law was added in 1980, Issues surrounding access to material on the Internet have led to major legal battles for the entertainment industry.

TRADEMARK

You cannot use Mickey
in a way that misleads
consumers
into thinking your work
is produced or
sponsored by Disney.

NEWER

COPYRIGHTS

You cannot use new,
copyrightable
versions
of Mickey until those
copyrights expire.

PUBLIC DOMAIN

2024

**You are free to copy, share,
and build on Mickey Mouse**

1.0!



Copyright

- Creators **own the copyright until fifty years after the author's death.** (subjected to Thai law)
- In USA, Copyright protection for works made for hire is 95 years from publication or 120 years from creation, whichever is shorter.
- An interesting copyright case with particular reference to Florida is Disney's copyright over several beloved characters, including Mickey Mouse.
- The 95-year copyright deadline for **Mickey Mouse is in October 2024.**

Copyright

- If a content is copyrighted, the creator of the content has complete ownership of the work. **Even if copyrighted material is publicly displayed online, you cannot use it personally without the explicit permission of the creator.**
- This test becomes even more stringent if you use copyrighted content in commercial work, where you anticipate some income.
- **Search engines** can help you find images with license terms that allow you to incorporate them in your own work.

Copyright

- Beginning with the 1978 report of the National Commission on New Technological Uses of Copyrighted Works (CONTU), an author's original creation expressed as computer software can be copyrighted. Computer software is, therefore, also subject to copyright laws.
- In the early days of the computer industry, **computer manufacturers bundled software at no additional cost to help buyers make the best use of their expensive computers.**

Copyright

- However, in January 1969 the US government filed a lawsuit against IBM, the dominant computer company of the time, calling this practice of bundling software with hardware as **anti-competitive**.
- Software became an independent marketable product, and as the cost of creating computer software rose, an independent computer software industry emerged.
- The copyright protections created further incentives to create and monetize computer software.

Copyright

- **The ethical principle of copyright protection** is well **codified in law**.
- **Software companies** take former employees to court for copying company code and offering it to competitors.
- However, the issues involved often become complicated for lawyers, judges, and juries to understand.

Copyright

- However, several developers and even leading software vendors have continued to **offer their computer code to the public for free for various reasons**. Some individuals are motivated by the general good of humanity.
- A leader in this school of thought is Richard Stallman who created the Free Software Foundation in October 1985 to create software that users can run, edit, contribute to, and share freely.
- Other motivations include establishing standards in an area critical to a company's success.
- For example, **Google has made the source code for its Chrome browser available for free** and **Microsoft has made the source code for its web application development technology (MVC Core) available for free**.

```

1 <!doctype html>
2 <html lang="en" dir="ltr">
3 <!-- Copyright 2015 The Chromium Authors. All rights reserved.
4 Use of this source code is governed by a BSD-style license that can be
5 found in the LICENSE file. -->
6 <head>
7 <link rel="stylesheet" href="chrome-search://local-ntp/ntp/assets/css/ntp.css" />
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How to View Page Source Code in Chrome

Microsoft

.NET
Why .NET
Features
Learn
Docs
Downloads
Community
LIVE TV

All Microsoft
Search

Home / ASP.NET Core

.NET Conf: Focus on AI Missed the event? Check out the sessions on demand now.
Watch videos

ASP.NET Core

Free. Cross-platform. Open source.
A framework for building web apps and services with .NET and C#.

Get started

Supported on macOS, Windows, and Linux

Build web apps fast with one stack

ASP.NET Core comes with everything you need to build web apps including Blazor, a web UI framework for quickly creating fast, secure, and robust web apps that run anywhere.

Copyright

- **Open-Source Software (OSS)** is software whose source code is designed to be publicly accessible.
- **Open source** is a popular term in the industry.
- Much critical Internet infrastructure runs on open-source software such as the **Linux Operating System**.
- Contributing to open-source projects can be a great learning and rewarding experience.
- However, using open-source code within the commercial code of a company can create several risks to the commercial product.

Copyright

- Therefore, **if you work for a for-profit software company**, you should talk to your legal department before taking advantage of any open-source software within the product.
- **Software companies typically scrutinize their code to ensure that no open-source code has crept into their software.**

Copyright - What is open-source software?

- **Open-source software (OSS)** refers to software that is distributed with its source code made available to the public. This allows anyone to view, modify, and distribute the software.
- Sharing of software has gone on since the beginnings of the computer age. In fact, not sharing software was the exception, and not the rule. The concepts of open-source software (OSS) long predate the use of the term.
- **This software are open for all.**
- For instance it is **Free**. In English the word **FREE** has two meanings:
 - Free as in free speech, freedom to distribute
 - Free as in no cost, or as is often said, like "Free beer"
- Use of **OSS means source code is made available with a license which provides rights to examine, modify and redistribute, without restriction on the user's identity or purpose.**

Overview of Copyright

- **Subject Matter:** All literary and artistic expression (songs, dances, sculptures, paintings, photos, writings, movies, computer programs, etc.).
- **Threshold for Protection:** Minimal originality and fixation in a tangible medium of expression.
- **Formalities:** Not required for validity but required for infringement suits.
- **Authorship & Ownership:** The creator is the owner unless transferred or a “work made for hire.”
- **Duration:** Life of the author + 50 years (Thai law) (+70 via US law); (95/120 years for work for hire via US law)
- **How to Obtain:** Automatic upon creation

Overview of Copyright



Rights of a Copyright Owner:

- Reproduction
- Make derivative works
- Distribution
- Performance & display
- Anti-circumvention
- Moral rights (very limited in the U.S.)



Limitations:

- Fair use
- No copyrights on ideas
- Independent creation is not infringement
- Compulsory licensing, particularly in the music industry.

Common Questions 4

- Question: Why do you need to register a copyright?
- Answer: You receive copyright protection for the work as soon as it is created, but you need to register it in order to:
 - Sue for damages
 - Receive attorneys fees
 - Block importations
- Although registration is inexpensive, you do not need to register every work, only the ones you think are valuable to the business and/or competitors.

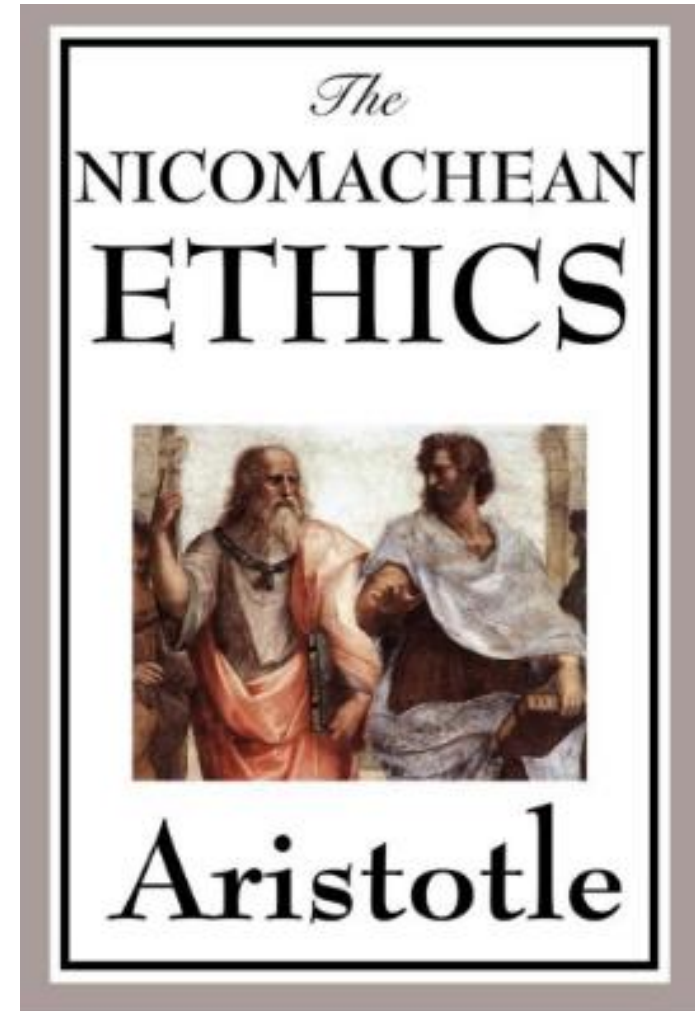




Public Domain

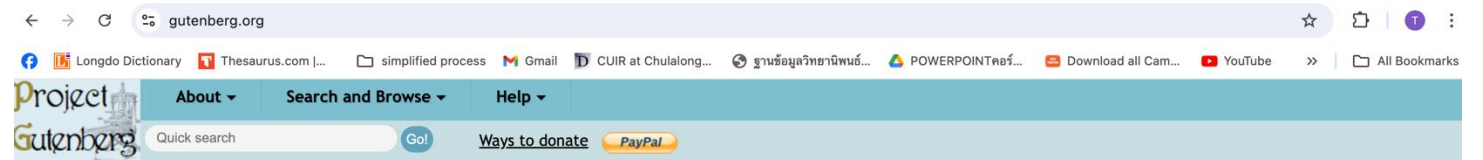
Public Domain

- The body of creative work to which no intellectual property rights apply is considered to be in the public domain.
- Creative work generally comes within the public domain either because the work is not eligible for copyright protection in the first place, or because **copyright protection** on the work has expired, for example, 50+ years after the death of the author (accordance via Thai law) or When you have explicit permission from the author or owner
 - Begins the moment the work is created and fixed in tangible medium
 - **Information is in the public domain after the copyright expires**
 - In USA, Congress can take things out of the public domain by extending copyright terms
- For example, the book *Nicomachean Ethics* is now in the public domain because it's been millennia since the death of its author(s). You can use material in the public domain extensively in your own creative works even though you cannot own it.



Public Domain

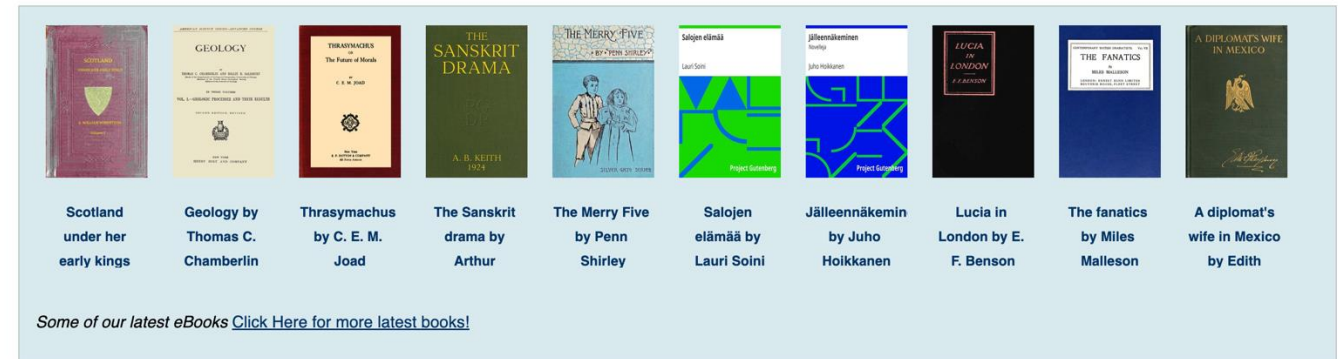
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Fair Use



Fair use is a legal doctrine that promotes freedom of expression by permitting the unlicensed use of copyright-protected works in certain circumstances.

- —Section 107 of the US Copyright Act

Fair Use

- **Fair use** is **any copying of copyrighted material** done for a limited and “transformative” purpose, such as to comment upon, criticize, teach, research, or parody a copyrighted work.
- **Fair use** principles **allow the use of copyrighted materials without permission from the copyright owner.**
- **Fair use** balances the interests of the copyright owner and freedom of expression by allowing unlicensed use of copyright-protected works in certain circumstances.

Fair Use

- The fair use of a copyrighted work, including such use by reproduction in copies or phonorecords or by any other means specified by that section, for purposes such as criticism, comment, news reporting, teaching (including multiple copies for classroom use), scholarship, or research, is not an infringement of copyright . .
- Generally, **fair use guidelines** allow the use of brief excerpts of copyrighted material for teaching, research, criticism, commentary, or news reporting.
- If you have any doubts or concerns about fair use, **you may want to contact the copyright owner.**
- Most companies have information about fair use of their copyrighted material.

Recap: Fair use

- ▶ Fair use is a doctrine that allows the use of copyrighted material without the permission of the copyright holder under certain circumstances, such as:
 - ▶ Criticism
 - ▶ Comment
 - ▶ News reporting
 - ▶ Teaching

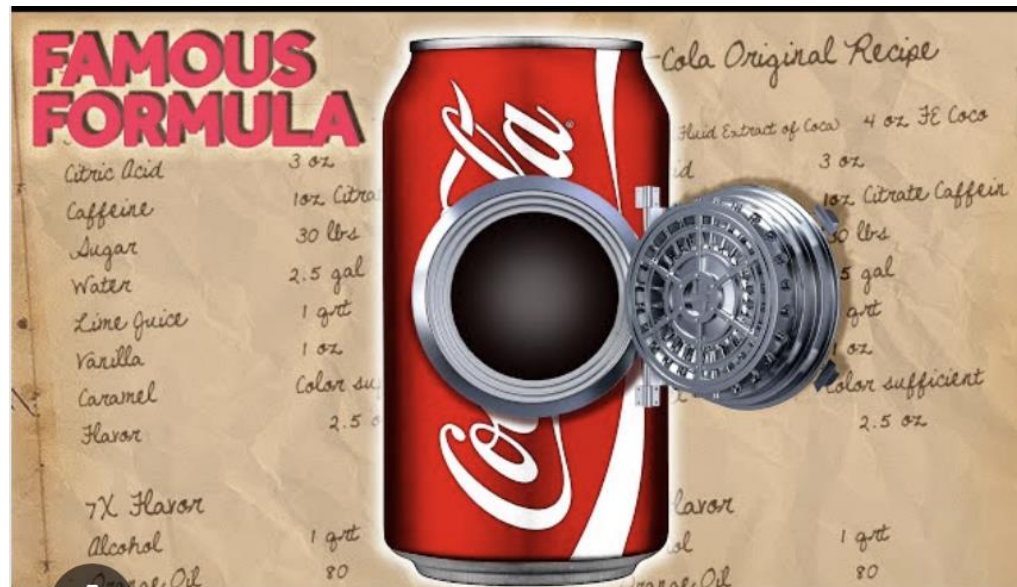




Trade secrets

Trade secrets

- Are information that companies keep secret from Public/Competitors to give them an advantage over their competitors.
- The formula for *Coca-Cola* is the most famous trade secret.





Licensing

Licensing

- Contractual agreement giving rights to others to use intellectual property in return for fee.
- Licensing is an arrangement between two parties, where one party has proprietary rights over some information, process or technology protected by a patent, trademark, or copyright.
- This arrangement requires the license to pay some specified sum to the holder of the proprietary rights (licensor) in return for permission to copy the patent, trademark, or copyright.

Licensing

Types of licensing:

1. **Patent license agreements:** Specify how the license would have access to the patent. The license may either just market a Product OR Manufacture and Sell Also. E.g. **télécommunication companies, Food Franchises etc.**
2. **Trademark license agreements:** Involves a franchising agreement. The entrepreneur operates a business using the trade mark & agrees to pay a fixed sum for use of the trademark, pay amount on sales volume & buy supplies from the franchiser e.g. **shell, Pepsi, Coca Cola bottlers etc.**
3. **Copyright license agreements** - Involve rights to use or copy books, software, music, photographs, plays, etc. E.g. **Indian Idol, even celebrities can license the right to use their image in a product etc.**

Licensing

Before entering into a licensing agreement, the entrepreneur should ask the following questions:

- Will customers recognize licensed property?
- How well does the licensed property complement my products or services?
- How much experience do I have with the licensed property?
- What is the long-term outlook for the licensed property?
- What kind of protection does the licensing agreement provide?
- What commitment do I have in terms of payment of royalties, sales quotas, and so on?
- Are renewal options possible and under what terms?



Insurance



Insurance

- **A promise of compensation for specific potential future losses in exchange for a periodic payment.**
- **Insurance** is designed to protect the financial well-being of an individual, company or other entity in the case of unexpected loss. Some forms of insurance are required by law, while others are optional.
- Agreeing to the terms of an insurance policy creates a contract between the insured and the insurer. In exchange for payments from the insured (called premiums), the insurer agrees to pay the policy holder a sum of money upon the occurrence of a specific event.

Insurance

Types of Insurance:

- 1. Property:** In property insurance possible coverage includes:
 - Fire insurance to cover losses to goods & premises resulting from fire & lightening. Can extend coverage to include risks associated with explosion, riot, vehicle damage, windstorm, floods.
 - Robbery to cover small losses for stolen property.
 - Business interruption will pay net profit & expenses when a business is shut down because of fire or other insured cause.
- 2. Casualty:** Physical Injury or Property Damage (Fuel Stations/Superstores/Shops)

Insurance

3. **Life:** Protects the Business Continuity especially a partnership.
4. **Worker's Compensation:** provides benefits to employees in case of on-job Injury (chemical/manufacturing industry)
5. **Bonding:** It protects company in case of **employee theft** of funds or protects a contractor if subcontractor fails to complete a job within an agreed-upon time frame (**Tender Not meets Deadline (Contractors)**).



Contracts

Contracts

A legally binding agreement between two parties. Entrepreneurs commonly sign contracts with vendors, landlords, & clients.

- It is very important for the entrepreneur to understand the fundamentals of issues related to contracts while also recognizing the need for a lawyer in many of these negotiations.

In case of Not Availing a Lawyer, Entrepreneur must take care of following essential items:

- All Involved Parties shall be Named along with their Roles (Buyer & Seller, Licensee & Licensor etc.)
- Detailed Transaction (Exact Location, Date, Time & Place of Delivery etc.)
- Exact Value of Transaction
- Involved Persons' Signatures must be Obtained in the Deal.

Contract Conditions and Results of a Breach of Contract

Contract Conditions

- An offer is made. It can be oral or written but is not binding until voluntary acceptance of offer is given.
- Voluntary acceptance of offer.
- Consideration (something of value) is given by both parties.
- Both parties are competent and/or have the right to negotiate for their firms.
- Contract must be legal. Any illegal activities under a contract are not binding. An example might be gambling.
- Any sales of \$500 or more must be in writing.

Results of a Contract Breach

- The party in violation of a contract may be required to live up to the agreement or pay damages.
- If one party fails to live up to its end of a contract, the second party may also agree to drop the matter and thus not live up to the agreement as well. This is referred to as contract restitution.

Contract Conditions and Results of a Breach of Contract

- Often business deals are concluded with a handshake.
- Ordering supplies, lining up financing, reaching an agreement with a partner, & so on, are common situations in which a handshake consummates the deal. Usually when things are operating smoothly, this procedure is sufficient. However if there are disagreements, the entrepreneur may find that there is no deal & that he or she may be liable for something never intended. The courts generally provide some guidelines based on procedure of cases.
 - One rule is to never rely on a handshake if the deal cannot be completed within one year.

Contract Conditions and Results of a Breach of Contract

4 essential items in an agreement to provide the best legal protection:

1. Understand the terms and conditions in the contract.
2. Cross out anything that you do not agree to.
3. Do not sign if there are blank spaces (these can be crossed out).
4. Make a copy for your files after signing.



IP Registration in Thailand – Trademark

- ❑ **Registration of trademark** is not required for protection but **recommended**.
- ❑ **First-to-file system**.
- ❑ Unregistered trademark is not protected against infringement, but passing-off.
- ❑ Trademark must
 - be distinctive
 - not be identical or confusingly similar to prior registered mark of other person
 - not contain prohibited element or be prohibited by law.
- ❑ **Prior use** in commerce before filing an application **is not required**.
- ❑ Both multiple-class application and single-class application are allowed.
- ❑ It takes around 1.5 – 2 years for a smooth application to reach registration.
- ❑ Registration is valid for **10 years, renewable** for a period of 10 years each.
- ❑ Thailand is a member state of **the Madrid Protocol**, effective from **7th November 2017**.

IP Registration in Thailand – Patent (1)

Patent Type	Basic Requirements	Protection Period
Invention Patent	Invention or process which has novelty, inventive step and industrial application	20 years (non-renewable)
Petty Patent	Invention or process which has novelty and industrial application but does not have inventive step	6 years plus two allowable extensions of 2 years each (10 years in total)
Design Patent	Ornamental aspects or aesthetics of products (shape, configuration, pattern, etc.)	10 years (non-renewable)

IP Registration in Thailand – Patent (2)

Requirements	Invention Patent	Petty Patent	Design Patent
Novelty	✓	✓	✓
Capability of industrial application	✓	✓	✓
Inventive step/ Non-obviousness	✓	✗	✗
Application Types	- Local - PCT National Phase	Local	Local

IP Registration in Thailand – Patent (3)

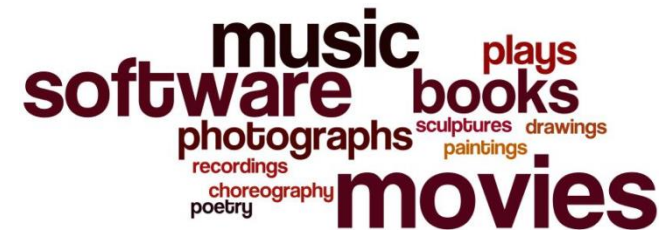
❑ Following inventions **are not eligible** for patent protection in Thailand:

- **Microorganisms** which would be found in nature or any substances extracted from animals or plants;
- **Scientific or mathematical rules and theories;**
- Computer programs (which are protected under copyright);
- Processes of diagnosis, treatment, or remedy used in curing human or animal diseases;
- Inventions which are contrary to public order or morality, public health, or welfare.



IP Registration in Thailand – Copyright

- ❑ No registration is required for protection.
- ❑ Copyright work is protected upon creation.
- ❑ **Deposit of copyright is beneficial and recommended.**
- ❑ Originality (≠ Novelty)
- ❑ Exclusions: news, unexpressed ideas, discoveries, scientific or mathematical theories, etc.
- ❑ Works of authorship: the lifetime of author plus 50 years from his death, or 50 years from the publication date if the author is a legal entity or anonymous person
- ❑ Works of applied art (such as drawings, paintings, sculpture, prints, architecture, photography, drafts, and models for utility or functional use): 25 years from the date of publication
- ❑ After expiration of copyright term, work falls into **public domain**.



IP Utilization and Commercialization in Thailand

❑ Assignment

- Assignment of a registered patent and a registered trademark **must be registered** with the Patent Office and Trademark Office respectively.
- Pending patent and pending trademark applications can be assigned.

❑ License

- License of a registered patent and a registered trademark **must be registered** with the Patent Office and Trademark Office respectively.
- Pending patent and pending trademark application cannot be licensed.

❑ IP as business collateral

- **IPR can be used as collateral for loan.**
- A collateral agreement must be registered online with the Business Collateral Registration Office (BCRO) of the Ministry of Commerce.





IP Enforcement in Thailand

☐ Four main routes for IP enforcement:

- Police complaint.
- Criminal action in court by owner.
- Civil action in court by owner.
- Customs measure.

☐ The Intellectual Property and International Trade Court was established in 1996.

☐ Specialized Appeals Court was established in 2017.

☐ Court takedown notice against online copyright infringement under Section 32/3 of Copyright Act is possible starting from August 2015.

☐ Court takedown order against online IPR infringement under Section 20(3) of Computer Crimes Act B.E. 2550 (2007) as amended is possible starting from May 2017.

TIPS for IP Registration in Thailand

- ❑ Register trademarks and patents early.
 - A smooth trademark application takes 1.5 – 2 years to reach registration.
 - A smooth invention patent application takes around 5-8 years to reach registration.
- ❑ A single-class trademark application is a better choice than a multi-class application.
- ❑ International trademark registration under the Madrid System can be claimed starting 7th November 2017.
- ❑ A PCT national phase application is faster than a local patent application.
- ❑ Use expert IP agents.



TIPS for IP Enforcement in Thailand

- ❑ Compile evidence of use and advertising materials.
- ❑ Use trademark watching services and market survey services for your well-known marks.
- ❑ Take all necessary actions against infringement activities and infringers in a swift and decisive manner.
- ❑ Use local agents, lawyers and investigators.
- ❑ Allocate and treat a budget on IP protection and enforcement as an “investment” and not as a burden and expense.



A close-up photograph of a person's hand holding a small, detailed model of a two-story house. The house has a brown roof, a chimney, a balcony with a metal railing, and several windows. The background is a blurred image of a person's torso in a light-colored shirt. The text "Property Control" is written in a white, sans-serif font across the middle of the image, partially overlapping the house model and the hand.

Property Control

Types of Property Control

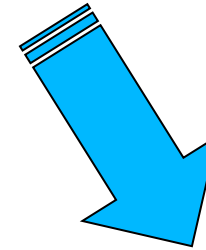
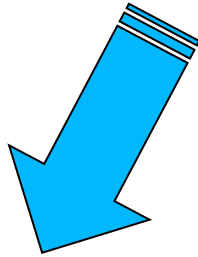


Own

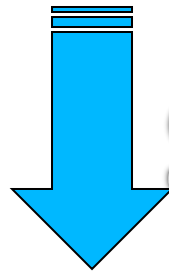


Lease
(Rent)

Types of Property Control



Keep



Sell

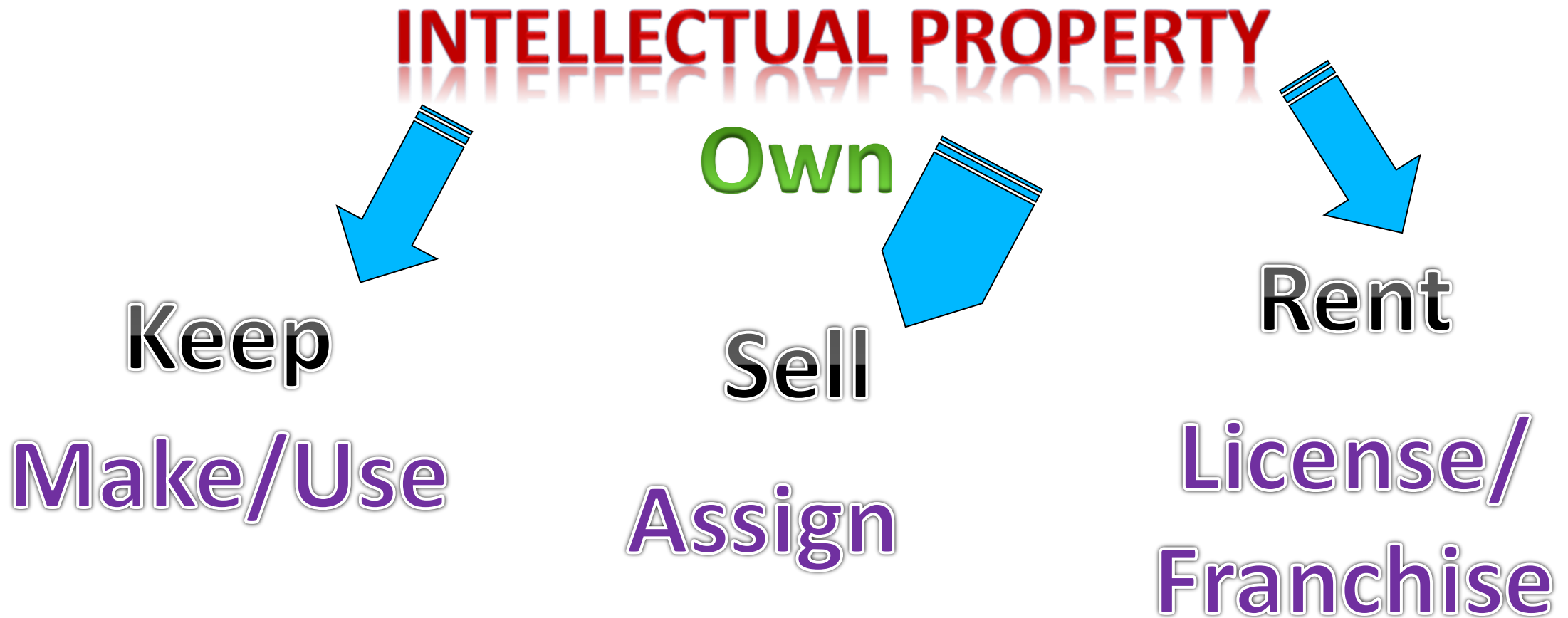


Rent



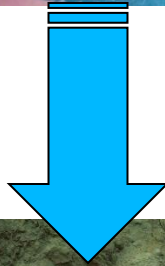
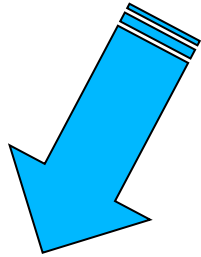
v

Types of Property Control

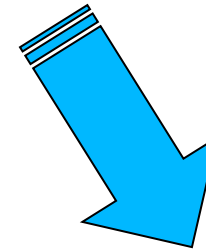


Types of Property Control: Do not own

Buy



Steal

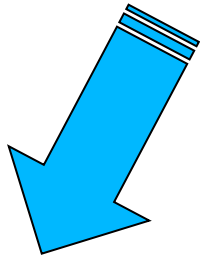


Rent



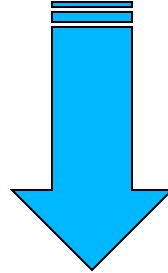
Types of Property Control: Do not own **BUT WANT TO USE**

INTELLECTUAL PROPERTY



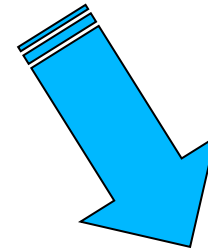
Buy

Assign



Steal

Infringe



Rent

**License/
Franchise**

Example



McDonald's Corporation

INTELLECTUAL PROPERTY



Own



McDonald's Owned



**Franchisee
Operated**

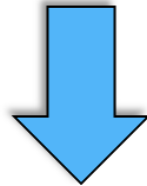
3M

Example of Layering IP

3M

Patent

1968
Dr. Spencer
Silver Invents
"low-tack"
reusable
adhesive



1974
Art Fry
invents using
the adhesive
to anchor
bookmarks in
hymnbook

1977
Launch
PRESS N'
PEEL in 4
cities but
sales
lackluster



1970
3M files
patent for
adhesive

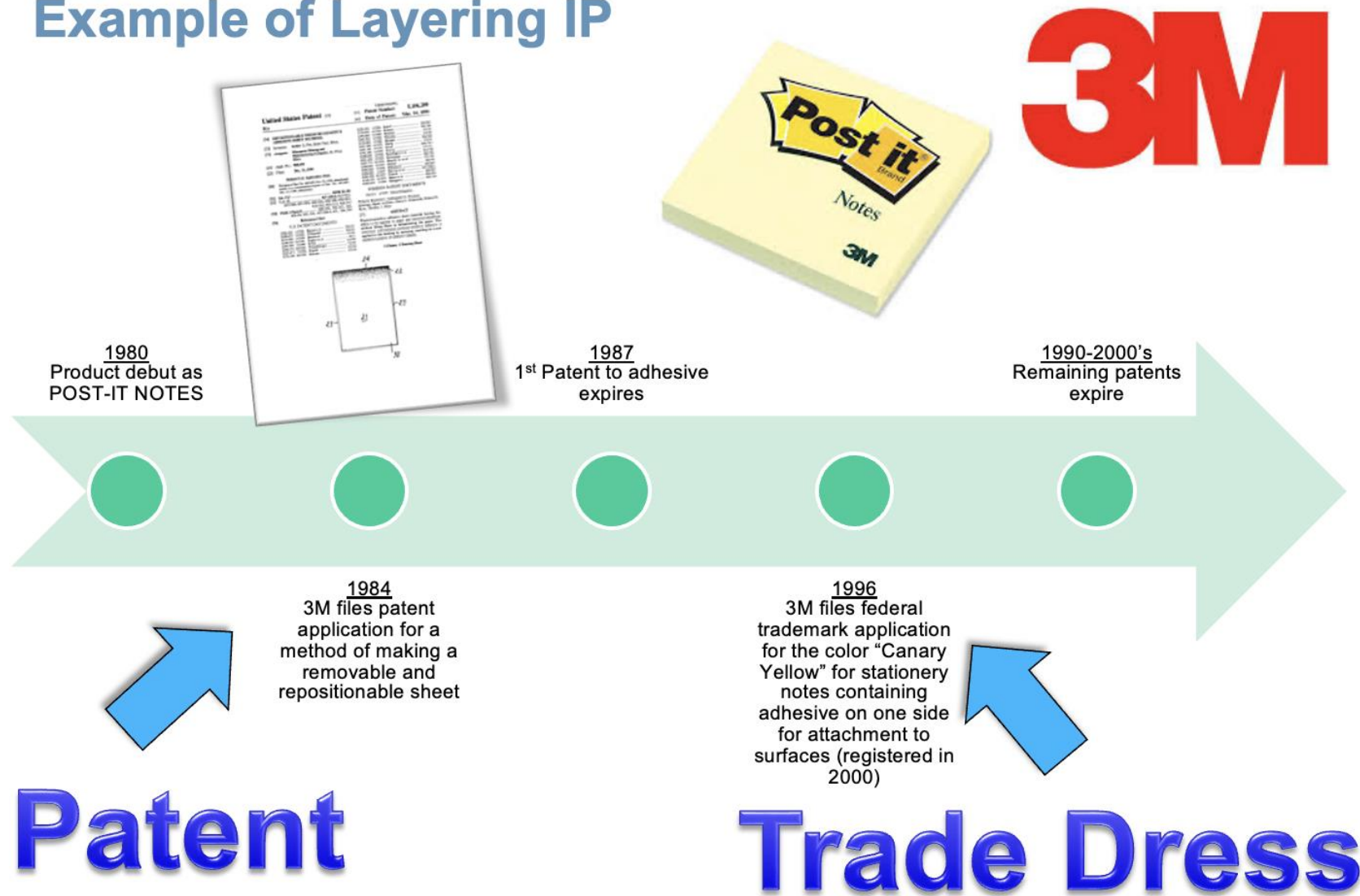
1975
3M files
federal
trademark
application
for POST-IT®



1978
Provided
Samples in
Boise Idaho
95% intent to
repurchase

Trademark

Example of Layering IP



Example of Layering IP

**SO WHY DON'T YOU
BUY FROM OTHERS
WHEN PATENTS
ARE EXPIRED?**



**Brand
Loyalty**



Thank you

